

P O R T E R | S C O T T

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Attorneys for Defendant

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

Superior Court of California,
County of San Francisco

08/19/2026

Clerk of the Court

BY: JAMES FORONDA

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

CSAA INSURANCE EXCHANGE;
DOES 1 through 50, inclusive;

Defendants.

**NOTICE OF WITHDRAWAL OF
DEFENDANT CSAA INSURANCE
EXCHANGE'S NOTICE OF MOTION AND
MOTION FOR ATTORNEYS' FEES AND
COSTS UNDER C.C.P. § 425.16(C)**

Date: August 26, 2026

Time: 9:00 a.m.

Dept: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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TO ALL PARTIES AND THEIR RESPECTIVE ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that Defendant CSAA INSURANCE EXCHANGE (“Defendant”) requests that the Motion for Attorney’s Fees currently set on the Court’s calendar on August 26, 2026, at 9:00 a.m. in Department 302, be withdrawn from calendar.

Defendant's counsel has met and conferred with Plaintiff (who is in propria persona) on the withdrawal of this motion.

Defendant's motion for attorneys' fees will be refiled for a later hearing date.

Dated: August 19, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
 Chad S. Tapp
 Tyler J. O'Connell
 Attorneys for Defendant
 CSAA INSURANCE EXCHANGE

Rosario v. CSAA

San Francisco County Superior Court Case No.: CGC-25-631801

PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On August 19, 2026, I served the following document: **NOTICE OF WITHDRAWAL OF DEFENDANT CSAA INSURANCE EXCHANGE'S NOTICE OF MOTION AND MOTION FOR ATTORNEYS' FEES AND COSTS UNDER C.C.P. § 425.16(C)**

	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed at Sacramento, California on August 19, 2026.

Monique Schubert
Monique Schubert